SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 144-145 of 2004 (YEAR: 2005)

CORAM: R.C. LAHOTI, G.P. MATHUR, P.K. BALASUBRAMANYAN

Jacob Mathew
... Appellant(s) / Petitioner(s)
Versus
State of Punjab
... Respondent(s)

Acts Referred:	Indian Penal Code, 1860
Sections:	Section 304A IPC

JUDICIAL HEADNOTE & SUMMARY

Established that criminal prosecution of doctors under Section 304A IPC requires gross negligence or recklessness, substantiated by independent medical opinion.

RATIO DECIDENDI

The Court held that: Established that criminal prosecution of doctors under Section 304A IPC requires gross negligence or recklessness, substantiated by independent medical opinion. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Jacob Mathew v. State of Punjab (Criminal Appeal No. 144-145 of 2004) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Indian Penal Code, 1860, particularly Section 304A IPC. Established that criminal prosecution of doctors under Section 304A IPC requires gross negligence or recklessness, substantiated by independent medical opinion.

OPERATIVE ORDER

ORDER: Decided